

#	Case Name	Tentative
1	All Green Electronics Recycling, LLC vs. Funding Metrics, LLC 2026-01539367	1. Demurrer to Amended Complaint 2. Motion to Strike Portions of Complaint <i>Continued. See minute order dated 7/9/26 (ROA 38).</i>
2	A. V. vs. Brea Olinda Unified School District 2024-01383647	Motion for Bifurcation Defendant Brea Olinda Unified School District's motion for bifurcation is DENIED. (See Code Civ. Proc., §§ 598, 1048, subd. (b).) Defendant requests an order bifurcating the issue of "liability via the primary assumption of the risk doctrine" from causation and damages. (Ntc. of Mtn., p. 1; see Mtn. P&As at pp. 3, 9.) Contrary to defendant's contentions, the primary assumption of the risk doctrine does not provide a complete bar to liability in this case. The "primary assumption of the risk" doctrine is matter of duty. "Under the primary assumption of risk doctrine, there is no duty to eliminate or protect a plaintiff against risks that are inherent in a sport or [recreational] activity." (<i>Calhoon v. Lewis</i> (2000) 81 Cal.App.4th 108, 115; <i>Griffin v. The Haunted Hotel, Inc.</i> (2015) 242 Cal.App.4th 490, 493.) But this does not mean that there is no duty of any kind. Although there is no duty protect against risks inherent in the sport itself, it is well established that defendants do have a duty to use due care not to increase the risks to a participant over and above those inherent in the sport. (<i>Knight v. Jewett</i> (1992) 3 Cal.4th 296, 315-316; <i>Olson v. Saville</i> (2024) 98 Cal.App.5th 1066, 1070-1071; <i>Fazio v. Fairbanks Ranch Country Club</i> (2015) 233 Cal.App.4th 1053, 1059.) As applicable here, this means that "a coach or sport instructor owes a duty to a student not to increase the risks inherent in the learning process undertaken by the student." (<i>Kahn v. East Side Union High School Dist.</i> (2003) 31 Cal.4th 990, 996, 1005-1006, 1011.) More specifically, a coach owes a duty to not increase the risks to a student by acting "recklessly" or " 'totally outside the range of the ordinary activity' involved in teaching or coaching the sport." (<i>Id.</i> at p. 996.)